

3. LAW AND JUSTICE

INTRODUCTION TO THE LEGAL SYSTEM – MODULE I

A.y. 2024/2025

Prof. Pietro Sirena



Un. 3

Sirena, *Introduction to Private Law*, 3rd edition

1. NATURAL LAW AND HUMAN REASON
2. LEGAL POSITIVISM
3. THE RENAISSANCE OF NATURAL LAW



Università
Bocconi
MILANO



Università Commerciale
Luigi Bocconi

TWO (OPPOSITE?) VIEWS OF LAW

The answers given to the question “What is Law?” during the course of history may be gathered into two main groups

Legal naturalism and the ancient sense of law (*ius quia iustum*)

By “legal naturalism” it is meant that this view of law was hinged on the ancient sense of nature as a rational order, where all men, animals and things were to accomplish their own, inner reason of being (*naturalis ordo*), whether or not a divine footprint was recognized in it. Law was justice and justice was the rational truth of nature, where all beings and things were deemed to accomplish what they were designed to do

Legal positivism and the modern sense of law (*ius quia iussum*)

During the 19th century, legal positivism has gradually overcome legal naturalism, thus becoming the common ground of any discourse about law and embodying the current mentality of jurists. In the positivist view, the “source” of a law is the establishment of that law by some socially recognized legal authority. The most famous conceptualization of legal positivism is to be ascribed to Hans Kelsen

NATURAL LAW AND HUMAN REASON

In the doctrine of natural law, **'unfair law is no-law'**



Strong definition of
natural law



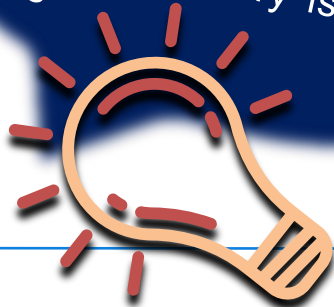
Weak definition of
natural law

LEGAL POSITIVISM

Kelsen's theory goes under the denomination of '**normativism**'



"Pure Theory of Law" (*Reine Rechtslehre*) (1933): based upon the fundamental assumption that law consists of legal rules, or norms, which are completely autonomous from religion, morality, and so on – in this sense, this theory is qualified as "pure"



- Legal positivism requires that some kind of test is introduced, through which norms can be acknowledged as such and discriminated from other, not legally binding rule
- Such a test could solely rest on the "origin" of a norm, its "pedigree", to wit the process through which a norm is adopted by political institutions
- Each norm owes its validity to another norm, which governs and rules the proceedings through which the former is enacted

THE DILEMMA OF UNJUST LAW

The doctrine of legal positivism can easily attract criticism, since from its point of view it must be considered as formally in force irrespective of its actual content



Invitation to overcome the formalistic legality

Distinction
between the law
as it is' and 'the
law as it should be

Civil
disobedience

Natural law

THE RENAISSANCE OF NATURAL LAW



One has not only a legal but a moral responsibility to obey just laws. Conversely, one has a moral responsibility to disobey unjust laws. I would agree with St. Augustine that “an unjust law is no law at all”

Radbruch's formula

If it departs from justice in an intolerable way, positive law is no longer to be considered as law and therefore it cannot and must not be applied or complied with



4. RULES PRINCIPLES, LEGAL SYSTEMS

INTRODUCTION TO THE LEGAL SYSTEM – MODULE I

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Un. 4

Sirena, *Introduction to Private Law*, 3rd edition

1. STRUCTURE OF NORMS
2. NORMATIVISM
3. SOURCES OF LAW
4. EU LAW
5. FILLING GAPS
6. INTERPRETATION
7. DOCTRINE OF STARE DECISIS



STRUCTURE OF NORMS

‘Thou shalt not kill’ (לֹא תִרְצַח)



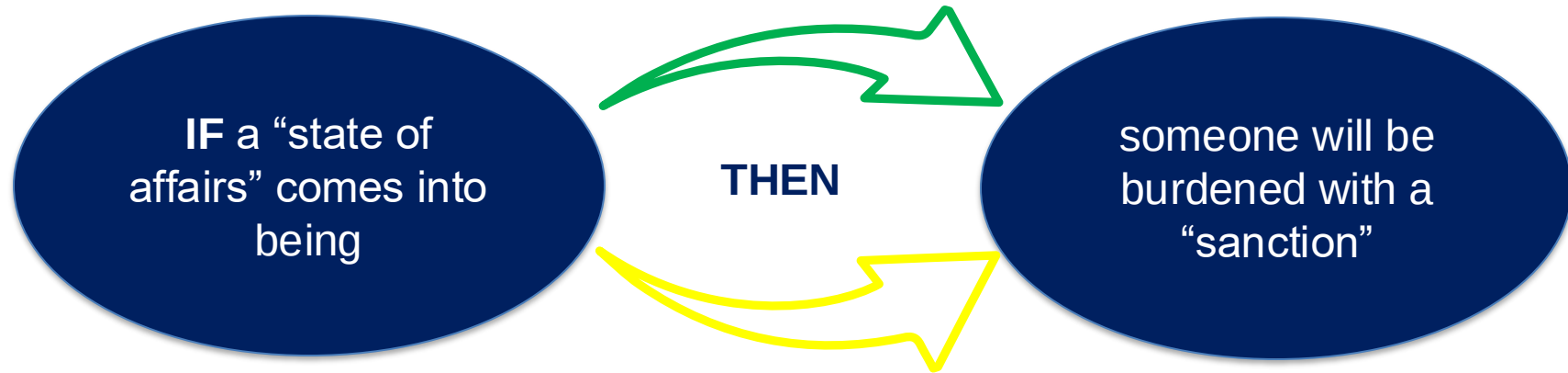
This kind of absolute imperatives may be appropriate to religion or to morality, but not to law

Law conveys a coercive social order, while religion binds only those who believe in it and morality only those who accept it

Kelsen's theory: a norm is such not because it stipulates a command, but because it stipulates the sanction to be applied in case the command is disobeyed by someone



STRUCTURE OF NORMS



A norm is shaped as a 'hypothetical independent period', whose protasis (= the IF-clause) consists of a state of affairs and whose apodosis (= the THEN-clause) of a sanction

The norm attaches a (negative) reaction of the State to a possible event or behavior (e.g. IF a contract is breached by one of the parties which have entered into it, THEN that party will be deprived of her/his rights towards the other)

THE SCOPE OF NORMS

A norm is marked by two characteristics, **generality** and **abstractness**

↳ 'treat like cases alike'

Generality

- A norm is applicable to anybody who finds herself/himself in the state of affairs envisaged by the IF-clause
- A norm is addressed not to individuals identified as such but to a class of individuals who happen to find themselves in the state of affairs envisaged by the IF-clause

Abstractness

- A norm is applicable to whatever event or behavior matches the state of affairs envisaged by the IF-clause

MANDATORY AND DEFAULT RULES

Mandatory rules (*zwingendes Recht, règles impératives, norme inderogabili*)

may not be set aside by an agreement between their addressees



- Most public law consists of mandatory rules
- Paramount for public law is the supremacy of public interest over individuals' interests

Default rules (*dispositives Recht, règles supplétives, norme dispositive*)

may be set aside through an agreement between their addressees



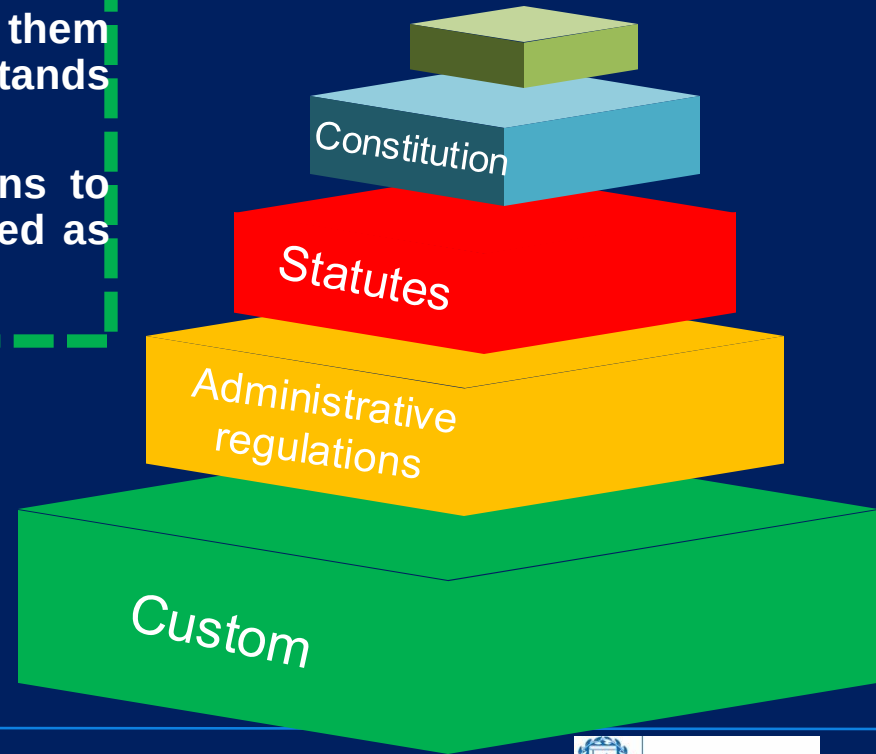
- Nearly the entirety of private law consists of default rules
- A major role is played by default rules which supplement agreements entered into by the parties

NORMATIVISM

- Norms are dislocated through a hierarchical order (*Stufenbau*), where each of them depends upon the higher one which stands above it
- A norm is valid if and only if it pertains to such a hierarchical order, which is termed as legal order (or legal system)

“soft positivism”: the conventional “rule of recognition” of a norm may well incorporate, besides pedigree, principles of justice or substantive moral values (Hart)

“basic norm”
(Grundnorm)



SOURCES OF LAW

Sirena, *Introduction*, ch. 6, para 2



A legal system comprises not only “primary” rules, but also “secondary” rules, which aim at identifying, changing and enforcing the first ones (Hart)

legal system: **certain, dynamic and efficient**

The “basic norm” is typically a secondary rule, which aims at identifying primary rules, thus ensuring certainty of a legal system

Secondary rules which govern the possible change of primary ones ensure **dynamism** of a legal system

Rules which deal with the enforcement of primary ones ensure the **efficiency** of a legal system



SOURCES OF LAW

The secondary rules which govern the possible change of the primary ones are commonly known as **sources of law**

- ❖ Sources of law play a major role in the historical development of a legal order, since they stipulate what facts or acts are capable:
 - ☐ of creating new rules, or
 - ☐ of amending or repealing those already existing
- ❖ They ascertain whether a particular rule is also a legal rule
- ❖ Each legal system is based upon its own sources of law, which are not recognized as such in another legal system

SOURCES OF LAW

The term “sources” can have two different meanings:

- **SOURCES OF PRODUCTION:** change the law in force through
 - **Acts:** sovereign decisions intended to enact new rules, or to amend or repeal those already existing;
 - **Facts:** customs and traditional practices meeting two requirements:
 - 1. objective stability over time;
 - 2. social perception a given behavior is legally binding (so-called *opinio iuris ac necessitatis*);
- **SOURCES OF COGNITION (or COGNIZANCE):** give legal notice about the sources of production (e.g., *Official Journal of the European Union*)



SOURCES OF PRODUCTION

1. The Constitution (Charter and complementary provisions)
2. Statutes/enactments having force of law (*leggi, decreti legge, decreti legislativi*)
3. Regional laws
4. Regulations
5. Uses

SOURCES OF COGNIZANCE

Gazzetta Ufficiale della Repubblica Italiana

SOURCES OF EU LAW



Sirena, *Introduction*, ch. 8, para 1, 1.2

Primary sources

Founding Treaties

- 1951: Treaty of Paris: European Coal and Steel Community
- 1957: Treaties of Rome: EURATOM (European Atomic Energy Community); EEC (European Economic Community)



Objective: creating a European area of free trade, with no internal frontiers (free circulation of goods, services, workers, capitals)



Last reform: Lisbon Treaty of 2007

The founding Treaties set out which competences are conferred to the European Union, regulate community bodies and their legislative powers

Bundesverfassungsgericht 12
October 1993

Sirena, *Introduction*,
ch. 8, para 1.1

German Constitutional Court in the **Maastricht** **ruling (1993)**

EU has sovereign powers

EU is not a federal state

So: not a
confederation
of States

For subjects falling within its
competence, the EU exercises:

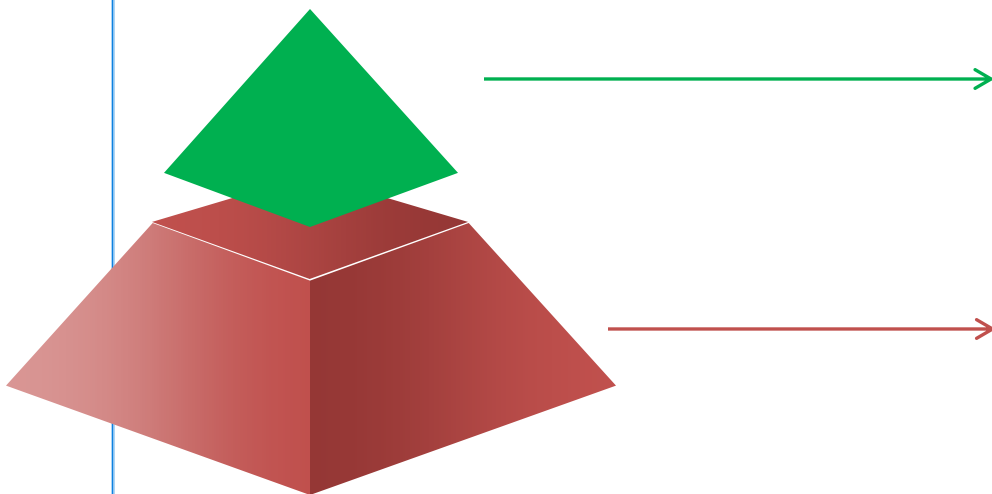
- legislative power
- judiciary power

Parliament
Commission
Council
European Council

Court of Justice



THE SOURCES OF EU LAW



Primary sources of EU Law

The establishment of the EU was initiated by the Member States.

Secondary sources of EU Law

Posited by the EU itself

Primary sources of EU Law

Treaty of the European
Union (TUE)

Charter of Fundamental Rights
of the European Union (art. 6
TUE); and general principles
drawn by the ECJ

Treaty on the Functioning of
the European Union (TFUE)

van Gend en Loos case (1963)

The founding Treaties have direct
applicability not only to Member States but
also to their citizens, as they establish both
rights and responsibilities for individuals.

(art. 6(3) TUE): “Fundamental rights, as
guaranteed by the European
Convention for the Protection of Human
Rights and Fundamental Freedoms and
*as they result from the constitutional
traditions common to the Member
States*, shall constitute general
principles of the Union's law”

Secondary sources of EU Law

Regulations

general application, binding in their entirety and directly applicable in all EU Member States

Art. 288 TFUE



Directives

binding as to the result to be achieved

Decisions

binding legal act that either may be of general application or may have a specific addressee

Non-binding acts

- Recommendations
- Opinions

Faccini Dori case (1994)

The ECJ ruled out the direct applicability of non-executing directives in horizontal relationships (between individuals), but it mandated that national laws should be interpreted in alignment with these directives

THE EUROPEAN COURT OF JUSTICE

Court of Justice

deals with requests for preliminary rulings from national courts, certain actions for annulment and appeals



General Court

rules on actions for annulment brought by individuals, companies and, in some cases, EU governments. In practice, this means that this court deals mainly with competition law, State aid, trade, agriculture, trade marks

- If you a private individual or a company has suffered damage as a result of action or inaction by an EU institution or its staff, she/he or it can take action against them in the Court, in one of 2 ways:
- •indirectly through national courts (which may decide to refer the case to the Court of Justice)
- •directly before the General Court – if a decision by an EU institution has affected individual (or company) directly and individually

RELATIONSHIP BETWEEN NATIONAL AND EU SOURCES OF LAW

Sirena, *Introduction*,
ch. 8, para 1.3

- initial clash between the ECJ and national (Constitutional) Courts
- today it is a shared principle that EU law is always to be preferred regardless of whether it was approved before or after the conflicting national law (ECJ, case Costa vs. Enel, 1964):
 - The European Union and the Member States are considered distinct and autonomous jurisdictions, each of them having its own system of sources
 - When Italy signed the first Treaty, it transferred competence to the European institutions with regard to certain subject matters and policy areas and, as a consequence, accepted that European law have precedence over Italian law (so-called supremacy)

THE SUPREMACY OF EU LAW

Preliminary ruling

In a scenario where a national court encounters a matter of EU law interpretation during a case, the verdict is put on hold, and the interpretative issue is directed to the ECJ for resolution.

➤ **Costa v. Enel case (1964)**

The ECJ clarified that an EU legislative act takes precedence over a national law, regardless of whether the national law was enacted after the EU act

➤ **Simmenthal case (1978)**

Every court should cease the application of legislation that conflicts with Community law, without requiring a ruling of unconstitutionality from the Constitutional Court.



EUROPEAN LAW and COMPARATIVE LAW

Case C-144/04 *Werner Mangold v Rüdiger Helm* [2005] ECR I-9981, para. 74.

CJEU bestowed a direct horizontal effect on a general principle prohibiting discrimination on grounds of age in the field of employment: “the source of the actual principle [is to be] found (...) in various international instruments and in the constitutional traditions common to the Member States”

vertical
comparison
influencing
the primary
dimension
of EU law

such a principle became a component of
European private law without being mentioned
by EU primary level legislation

principle was expressly set forth in the
Finnish and Portuguese Constitutions

Sirena, *Introduction*,
ch. 8, para 1.5

EUROPEAN LAW and COMPARATIVE LAW

vertical
comparison
?

A “downward impact” (vs. upward impact) of European private law in the Member States’ legal systems

An example

Influence of European private law with regard to the **principle of good faith**, whose relevance and significance increased in several domestic settings



in the Italian context, the principle of good faith was rarely applied by the Corte di cassazione, but this trend was reversed with the increasing relevance of the principle in EU law (especially after the enactment of the Unfair Terms Directive)



Relations between European Law and Comparative Law

Opinion of
Advocate General
Maurice Lagrange

Case 8/55
*Fédération
Charbonniere de
Belgique v. High
Authority* [1954 to
1956], ECR 245



“(...) although the Treaty which the Court has the task of applying was concluded in the form of an international treaty and although it unquestionably is one, it is nevertheless, from a material point of view, the charter of the Community, since the rules of law which derive from it constitute the internal law of that Community. As regards the sources of that law, there is obviously nothing to prevent them being sought, where appropriate, in international law, *but normally and in most cases they will be found rather in the internal law of the various Member States*



FILLING LEGAL GAPS

Sirena, *Introduction*,
ch. 6, para 2.2

It is **complete**, in the sense that no gaps are to be encountered in its primary rules, since they provide for any relevant case

According to a traditional claim of continental legal positivism, a legal system is both **complete** and **consistent**

It is **consistent**, in the sense that no contradictions are to be encountered in its primary rules, since each relevant case is given just one legal response

it is undeniable that, if taken into consideration statically, any legal system is incomplete and inconsistent

any legal system comprises some secondary rules which are designed to fill in such gaps and others which are designed to solve such contradictions

ENGLARO CASE

- Eluana Englaro was born on 25 November 1970 and entered a persistent vegetative state on 18 January 1992, due to a car accident
- Afterwards, Eluana was nourished by medical staff through a feeding tube, but her father wanted it to put an end to her life
- Eluana's father claimed that, prior to the accident, she had visited a friend laying in a coma and told him that, had she found in the same situation, her will was not to be kept artificially alive

Art. 2: Duty to solidarity

Art. 13: Personal liberty is inviolable

Art. 32: The Republic safeguards health as a fundamental right of the individual and as a collective interest

Italian Constitution



ENGLARO CASE

Corte di Cassazione, I section 16 october 2007, n° 21748

The court may authorize the legal guardian to interrupt medical treatments (hydration and artificial feeding) that keep an incapacitated person lying in a persistent vegetative state artificially alive, provided that: *a)* the condition of the vegetative state is ascertained as irreversible, according to recognized scientific parameters, *b)* the application reflects the patient's will, drawn from his/her previous statements or by her/his personality, lifestyle or beliefs

On 2 February 2009 Eluana was moved to a private nursing home in Udine, Friuli, and feeding was discontinued

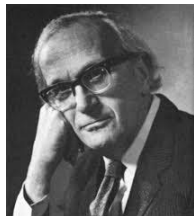


FILLING LEGAL GAPS

Gaps in primary norms may be filled in by secondary rules authorizing judges either to **create new law** or to **extend the scope** of law which already exists



- Anglo-American jurisdictions take the first option



Gaps in law are filled
at judges' discretion
(Hart)

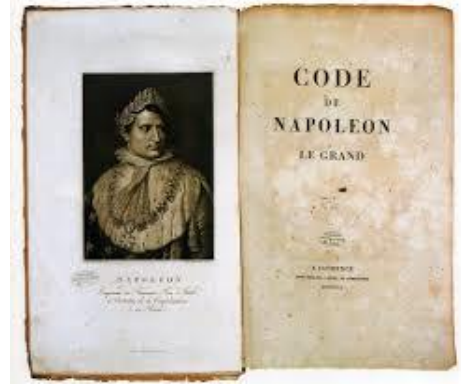


No gaps in law really
exist, “implicit” law, i.e.
principles (Dworkin)

- Civil law jurisdictions resort to normative mechanisms designed to extend norms which already exist to unregulated cases (**analogy**)

FRANCE – *CODE CIVIL*

Titre préliminaire : De la publication, des effets et de l'application des lois en général



Article 4

Le juge qui refusera de juger, sous prétexte du silence, de l'obscurité ou de l'insuffisance de la loi, pourra être poursuivi comme coupable de déni de justice

Article 5

Il est défendu aux juges de prononcer par voie de disposition générale et réglementaire sur les causes qui leur sont soumises

ANALOGY

Italian law provides for two levels of analogy, which are set in a hierarchical order:



analogia legis

analogia iuris

Pursuant to art. 12 prel. disp. to c.c.,

- if no settled law necessitates a case, then it is to be adjudicated **in accordance with provisions pertaining to similar cases or to akin branches of law** (*analogia legis*)

If this mechanism fails to fill in the relevant gap, particularly because no 'dispositions pertaining to similar cases or to akin branches of law' are given...

- if there is still any doubt, the case shall be decided according to the **general principles of the State** (*analogia iuris*)

ANALOGY

Nullum crimen, nulla poena sine lege (There cannot be any crime or any punishment unless stated in the law)



Pursuant to art. 14 prel. disp. to c.c., furthermore, (criminal law and) exceptional norms are not to be applied analogically.



As a matter of fact, the exceptionality of a norm is that it provides for cases which are not similar to any other, so that it does not match the very basic requirement of analogy



In many jurisdictions such a norm does not exist

- Main problem: determine in which cases a norm can be considered exceptional

SWISS MODEL

Sometimes a combination of analogy and discretion by judges is provided for by law:

Art. 1, 2. and 3. Absatz, of the Swiss *Zivilgesetzbuch* (ZGB) in force since 1912:

- *‘Kann dem Gesetz keine Vorschrift entnommen werden, so soll das Gericht nach Gewohnheitsrecht und, wo auch ein solches fehlt, nach der Regel entscheiden, die es als Gesetzgeber aufstellen würde.*
- *Es folgt dabei bewährter Lehre und Überlieferung’*

If no legal provision is available, then judges shall apply custom and, if also the latter is lacking, the rule they would lay down in the legislator's shoes. In that, commanding scholarship and tradition are to be followed



SETTLING ANTINOMIES

Inconsistencies in primary provisions of law, traditionally termed **antinomies**, may be solved by secondary provisions authorizing judges to apply just one of the colliding primary provisions, which is to identified on the basis of criteria given by law



Hierarchical criterion: if a provision of law, which is subordinated in the hierarchical order of a legal system, collides with another, which is superordinate, the latter prevails upon the former

Content-based criterion: if a provision, which has a broader scope, collides with another, which has a narrower scope, the latter prevails upon the former

Time-based criterion: if a provision which has been enacted sooner, collides with another, which has been enacted later, the latter prevails upon the former

CRITERIA OF INTERPRETATION(1)

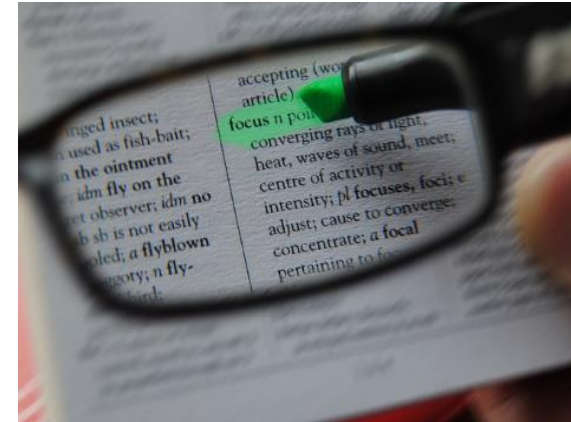
Sometimes it is necessary to decide about the proper scope of application of a rule. The civil law tradition has developed different criteria of interpretation

- **Grammatical (or literal) interpretation:** it sticks to the wording of a provision
- **Systematic interpretation:** it derives the meaning of a provision from the overall legal system



CRITERIA OF INTERPRETATION (2)

- **Historical interpretation:** it draws on the objective intention of the lawmaker, as it is laid down in preparatory works, «whereas» clauses, etc.
- **Teleological interpretation:** it draws on the policy underpinning a provision, thus allowing to narrow or to broaden its literal interpretation



EXERCISE

- ✓ A rule forbids the presence of dogs in a butchery

Does this rule also apply to guide dogs?

- **Literal rule:** guide dogs are dogs. No exemption is granted to them. Therefore, a rule prohibiting dogs from a butchery applies to guide dogs as well
- **Legislative intent:** explanatory works and «whereas» may point out that the rationale of the prohibition consists in preventing unhygienic situations in food stores. Therefore, guide dogs are banned as well.
- **Teleological interpretation (of the legislative intent):** guide dogs are few and trained. Actually, they do endanger the hygiene of butchereries. Therefore, they may be deemed to be allowed to enter.

A precedent adjudicated by a higher court has an absolute force for a lower court

**Doctrine
of
«STARE
DECISIS»**

Overruling

that binding force ceases if and when a higher court assesses it as unsound and wrong

Distinguishing

a precedent is not binding with regard to cases that are substantially different from it



5. PRIVATE LAW AND PUBLIC LAW

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Un. 5

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Università
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MILANO

1.

PRIVATE AND PUBLIC LAW

2.

PUBLIC LAW: NOTION AND SUBJECTS



Università Commerciale
Luigi Bocconi



PRIVATE LAW AND PUBLIC LAW

Jurisdictions of continental Europe are generally acquainted with the distinction between **private law** (*droit privé*, *Privatrecht*, *diritto privato*) and **public law** (*droit publique*, *öffentliches Recht*, *diritto pubblico*)

Public law is that part of the law
in which the administration as
such plays a role



Private law is that part of the law
in which the administration as
such does not play a role



The State can act as a private party

The distinction is somehow
rooted in the sources of
Roman law and over time
dealt with by (German and
French) scholarship

The distinction became an
institutional reality only in
1800, when Napoleon created
administrative tribunals

WHAT IS PRIVATE LAW?

Private law deals with the mutual relations between citizens

civil law (*droit civil, Bürgerliches Recht, diritto civile*):
applicable to the generality of legal subjects

Contract law, tort law, property law, family law, inheritance law

commercial law (*droit commercial, Handelsrecht, diritto commerciale*):
specifically applicable to enterprises

Companies, fair competition (antitrust prohibitions), industrial and intellectual property



The Italian *codice civile* encompasses both civil and commercial law and has thus reunited private law

WHAT IS PUBLIC LAW?



- The rise of public law has historically aimed at exempting the **State's authoritative power** from undergoing private law norms (particularly regards civil liability towards citizens)
- As opposed to private law, which is applicable to all legal subjects and is therefore deemed as general, public law is special, i.e. applicable solely to the State as exercising its own sovereign powers
- If the State acts not for the sake of its own authoritative power, but like any other legal subject, private law is perfectly applicable to its legal relations
 - the State is said to act *iure privatorum* (accordingly to private law)
 - e.g., the State may have private properties and, if so, may well rent or sell them by entering into private law contracts with any other legal subject

WHAT IS PUBLIC LAW?



- **Administrative law** pertains to what is executory. It covers the many interactions between government agents and civilians
- **Criminal law** deals with the prosecution of crimes (or criminal offences), *i.e.* unlawful acts which are punished by the State because of their harmfulness towards individuals or the community
- **Constitutional law** lays the State's foundations, both regarding protection of citizens' fundamental rights and liberties, and the structural and functional organization of its powers
- **Procedural law** regulates the proceedings for the judicial application of private law, criminal law and administrative law
- **Tax law** regulates taxation